

Opinion of the Court

what *Apodaca* might mean.³⁶ To its credit, Louisiana acknowledges the problem. The State expressly tells us it is not “asking the Court to accord Justice Powell’s solo opinion in *Apodaca* precedential force.”³⁷ Instead, in an effort to win today’s case, Louisiana embraces the idea that everything is up for grabs. It contends that this Court has never definitively ruled on the propriety of nonunanimous juries under the Sixth Amendment—and that we should use this case to hold for the first time that nonunanimous juries are permissible in state and federal courts alike.

III

Louisiana’s approach may not be quite as tough as trying to defend Justice Powell’s dual-track theory of incorporation, but it’s pretty close. How does the State deal with the fact this Court has said 13 times over 120 years that the Sixth Amendment *does* require unanimity? Or the fact that five Justices in *Apodaca* said the same? The best the State can offer is to suggest that all these statements came in dicta.³⁸

³⁶ See, e. g., *Burch v. Louisiana*, 441 U. S. 130, 136, and n. 9 (1979) (describing both plurality opinion and Justice Powell’s separate writing); *Brown v. Louisiana*, 447 U. S. 323, 331 (1980) (plurality opinion) (describing neither); see also *McKoy v. North Carolina*, 494 U. S. 433, 468 (1990) (Scalia, J., dissenting) (same). On a few occasions we’ve suggested that perhaps *Apodaca* means the Sixth Amendment does not require unanimity at all. See *Ludwig v. Massachusetts*, 427 U. S. 618, 625 (1976) (quoting *Apodaca* plurality); *Gaudin*, 515 U. S., at 510–511, n. 2 (same); see also *Holland v. Illinois*, 493 U. S. 474, 511 (1990) (Stevens, J., dissenting) (same). But on another occasion, we suggested that it could make a difference whether a particular right was rooted in the Sixth Amendment’s jury trial guarantee or Fourteenth Amendment due process guarantee. See *Schad v. Arizona*, 501 U. S. 624, 634, n. 5 (1991) (plurality opinion). The dissent contends that these cases have “reiterated time and again what *Apodaca* had established.” *Post*, at 145 (opinion of ALITO, J.). More accurately, these “reiterations” have suggested different things at different times.

³⁷ See Brief for Respondent 47; Tr. of Oral Arg. 37–38.

³⁸ In at least some of these cases, that may be a fair characterization. For example, while *Thompson* was quick to say that the U. S. Constitution requires “the unanimous verdict of a jury of twelve persons,” the question